

TAXPAYER LIABILITY FROM PLATE MISREADS · SCRIPT B**The city owns the downside when the camera is wrong**

About 1.6 min at ~140 words/min · 224 words · Replace [Your Name]. Speak calmly. One speaker, one focus.

Tip: swap bracketed fields. Cite numbers carefully. End with the cancel / yearly-vote ask.

Mayor Crawford, members of City Council. My name is [Your Name], and I live in Crossville.

Flock sells a camera lease. Taxpayers keep the lawsuit risk.

Public reporting keeps documenting the same pattern: plate-reader errors put innocent people at gunpoint.

Settlements in other cities prove the downside is real money, often hundreds of thousands or more, spent because a machine misread a character and officers treated the alert as certain instead of slowing down to verify it.

If a bad stop turns into a lawsuit, Crossville is the defendant. Vendor marketing will not sit at the defense table. The city will.

I support catching real criminals. I do not support betting taxpayer money on error-prone mass surveillance. Insurance and indemnity clauses will be waved around. They do not erase financial responsibility when a family is detained because a camera swapped a letter for a number. Removing these cameras now is cheaper than defending a lawsuit later.

THE ASK (say this)

My ask is clear. Cancel Crossville's Flock contract and remove the cameras. Require a public hearing and a recorded City Council vote before any surveillance equipment is ever proposed again. If you will not cancel yet, take a recorded yes-or-no vote each year before any renewal, with no automatic renewal that skips a public vote, and publish monthly use reports the public can check. Thank you. I yield.

PREPARED FOR CROSSVILLE CITY COUNCIL

Municipal Liability Risk Brief

Flock Safety ALPR in Crossville, Tennessee

A council-facing fiscal and civil-rights risk assessment from Crossville's 2022 Flock quote, Atlas of Surveillance camera counts, and research databases (updated July 21, 2026). Headline misuse/settlement figures are national or statewide catalogs — **not Crossville incident counts**. Settlement totals mix ALPR and other AI-enforcement vendors; they are cited for liability scale, not as Flock-only payouts.

39 documented ALPR / Flock officer-misuse incidents in the on-site catalog (includes some non-Flock / unconfirmed-Flock ALPR rows — see JSON vendor fields). **NATIONAL — NOT CROSSVILLE**

\$3.68M published wrongful-enforcement settlements in the on-site multi-vendor catalog (\$3,679,500 / 12 cases with settlement fields). **NATIONAL — NOT CROSSVILLE; NOT ALL FLOCK**

2 Tennessee misuse entries in that misuse catalog (Oak Ridge Flock; Shelby Co. ALPR allegation — Flock not confirmed). **STATEWIDE TN — NOT CROSSVILLE**

11 Crossville PD Flock ALPRs (Atlas, Sept. 2025). **CROSSVILLE-SPECIFIC**

Bottom line for Council

Crossville taxpayers — not the camera vendor — carry downside risk when an ALPR misread, unchecked search, or network abuse produces an unconstitutional stop, a privacy scandal, or a records fight. TCA § 55-10-302 limits retention; it does not immunize the City from 42 U.S.C. § 1983 claims.

Exposure channels with public precedents (mostly outside Crossville):

- Wrongful high-risk stops from OCR/hotlist errors — e.g. Gilliam v. Aurora \$1.9M and Denise Green v. San Francisco \$495k (ALPR systems; not Flock-branded cases; cited for liability scale).
- Officer misuse of networked ALPR searches for stalking/personal tracking (catalogued nationally; Tennessee entries include Oak Ridge/Flock and Shelby County ALPR allegation — none are Crossville incidents).
- Records / transparency failures — Everett, WA \$25,000 public-records settlement over withheld Flock records (June 2026), not a wrongful-stop payout.
- Fourth Amendment / program-structure litigation risk (Schmidt v. Norfolk amicus wave; Boulder class action).
- Program expansion without a published Crossville policy, audit log, or efficacy report (as of July 21, 2026, this brief has not found a city-published ALPR search policy or official public camera map).

1. What Crossville currently runs

Vendor quote: Q-00234 — 10 Falcons; \$25,000 recurring; \$3,500 implementation; start 08/26/2022 (non-binding proposal). Atlas of Surveillance: 11 Crossville PD Flock ALPRs as of September 2025. Police Chief / City Manager / Mayor: Jessie Brooks - Valerie Hale - R.J. Crawford.

Gap alert: the 2022 quote describes 10 Falcons; Atlas lists 11 by September 2025 — expansion without a resident-facing explanation of cost, locations, or outcomes. Do not treat \$25k/year as proven pricing for 11 cameras without current invoices.

2. The immunity myth — TCA § 55-10-302

A retention limit is a data-handling rule, not a municipal liability shield. If Crossville deploys ALPR and an unconstitutional seizure or related civil-rights injury follows, federal § 1983 exposure attaches to government actors — with settlement dollars funded by taxpayers.

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Brittney Gilliam; 6yo daughter Lovely; 17yo sister; 14yo niece; 12yo niece - Aurora

VICTIM NAME

Brittney Gilliam; 6yo daughter Lovely; 17yo sister; 14yo niece; 12yo niece

INCIDENT DATE

2020-08-02

INCIDENT YEAR

2020

CITY

Aurora

COUNTY

Arapahoe

STATE

CO

POLICE DEPARTMENT

Aurora Police Department

TECHNOLOGY

ALPR

ALERT REASON

Stolen vehicle

NARRATIVE SUMMARY

Aurora PD ALPR/system flagged Gilliam's Colorado-plated SUV as matching a stolen Montana motorcycle with same plate number but different state. High-risk stop in parking lot: family including children forced prone at gunpoint; Gilliam, sister, and 12yo handcuffed; 6yo and 14yo ordered hands up face-down on hot pavement. Mistake discovered after handcuffing. \$1.9M settlement Feb 2024.

CURRENT CASE STATUS

Settled

CONFIDENCE SCORE

0.97

VICTIM SEX

F

VICTIM RACE

Black

TECHNOLOGY CATEGORY

ALPR

VENDOR

ALPR (not Flock Safety)